

7.	25CV1907	RUTH HAYNES ET AL vs. ASHLEY SPENCER ET AL
MOTION FOR TRIAL PREFERENCE		

Plaintiff filed this motion for trial preference pursuant to CCP § 36 which states

(a) A party to a civil action who is over 70 years of age may petition the court for a preference, which the court shall grant if the court makes both of the following findings:

(1) The party has a substantial interest in the action as a whole.

(2) The health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation.

Defendant's opposition disputes only whether the health of the Plaintiff is such that a preference is necessary to prevent prejudice. The court finds Plaintiff has sufficiently established the health of the Plaintiff requires preference based on the nature of the injury in combination with the age of the Plaintiff.

TENTATIVE RULING #7: APPEARANCES REQUIRED FRIDAY, MAY 29, 2026, AT 8:30 AM IN DEPARTMENT NINE.